

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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LEXIE ANDRE PEAK,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JONATHAN
GOENNER, BADGE NUMBER 15852, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 23RD PRECINCT,

Defendants.
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Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.

Basis of venue is place
of occurrence.

SUMMONS

Plaintiff resides at
34-25 Vernon Boulevard
L.I. City, New York 11106

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
November 7, 2014



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
LEXIE ANDRE PEAK
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER JONATHAN GOENNER,
BADGE NUMBER 15852,
23rd Precinct
162 East 102nd Street
New York, New York 10029

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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LEXIE ANDRE PEAK,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, POLICE OFFICER JONATHAN
GOENNER, BADGE NUMBER 15852, AND SEVERAL
UNIDENTIFIED POLICE OFFICERS ASSIGNED
TO THE 23RD PRECINCT,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff LEXIE ANDRE PEAK by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT respectfully alleges as follows:

1. That Plaintiff LEXIE ANDRE PEAK is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.
2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.
3. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.
4. That at all times hereinafter mentioned, Defendant POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, was employed by Defendant CITY OF NEW YORK as a police officer.
5. That at all times hereinafter mentioned, Defendant POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, acted within the scope of his employment for Defendant CITY OF NEW YORK.
6. That at all times hereinafter mentioned, Defendant POLICE OFFICER JONATHAN

GOENNER, BADGE NUMBER 15852, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of his office as a police officer for said county, city and state.

7. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT were employed by Defendant CITY OF NEW YORK as police officers.

8. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT acted within the scope of their employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned, Defendants SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT were acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County, City and State of New York, and under the authority of their office as police officers for said county, city and state.

10. That on April 20, 2012, at approximately 4:50 A.M., Plaintiff LEXIE ANDRE PEAK was lawfully walking on 106th Street near its intersection with Second Avenue, in the County, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including, but not limited to, Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT.

11. That, at the aforementioned time and place, Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, handcuffed Plaintiff LEXIE ANDRE PEAK and placed him under arrest for Robbery (2nd Degree) despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

12. That Plaintiff LEXIE ANDRE PEAK was then transported to the 23rd Precinct (162 East 102nd Street, New York, New York 10029) of the New York City Police Department, and then to New York Central Booking where his arrest was processed, thereafter Plaintiff was

incarcerated on Rikers Island.

13. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, initiated criminal proceedings against Plaintiff LEXIE ANDRE PEAK despite Defendants' knowledge that they lacked probable cause to do so.

14. That on August 24, 2012, by Order of the Honorable J. Burke, all criminal charges against Plaintiff LEXIE ANDRE PEAK were dismissed (Docket No. 2012NY031894 - Criminal Court of the City of New York).

15. That Plaintiff LEXIE ANDRE PEAK was incarcerated by Defendant CITY OF NEW YORK, its agents, servants, and employees from April 20, 2012, until August 24, 2012, when he was released from New York City Department of Correction custody.

16. As a result of the foregoing, Plaintiff LEXIE ANDRE PEAK sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

**AS AND FOR A FIRST CAUSE OF ACTION FOR FALSE ARREST
UNDER 42 U.S.C. § 1983**

17. Plaintiff LEXIE ANDRE PEAK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

18. That at the aforementioned time and place, Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, placed Plaintiff LEXIE ANDRE PEAK under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

19. That Plaintiff LEXIE ANDRE PEAK had not committed any offense and Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

20. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD

PRECINCT were aware that probable cause did not exist for the arrest and detention of Plaintiff LEXIE ANDRE PEAK and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff LEXIE ANDRE PEAK and such actions were committed in bad faith.

21. That, in all of the wrongful acts above alleged, Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff LEXIE ANDRE PEAK and such actions were committed in bad faith.

22. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff LEXIE ANDRE PEAK was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1983, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

23. As a further result of the above-described acts, Plaintiff LEXIE ANDRE PEAK was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FALSE IMPRISONMENT
UNDER 42 U.S.C. § 1983**

24. Plaintiff LEXIE ANDRE PEAK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

25. That Plaintiff LEXIE ANDRE PEAK was falsely imprisoned from April 20, 2012, to August 24, 2012, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants POLICE OFFICER JONATHAN GOENNER, BADGE

NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

26. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, intended to confine Plaintiff LEXIE ANDRE PEAK, and Plaintiff LEXIE ANDRE PEAK was conscious of the confinement, and Plaintiff LEXIE ANDRE PEAK did not consent to the confinement.

27. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff LEXIE ANDRE PEAK and damaging Plaintiff LEXIE ANDRE PEAK in his reputation and depriving him of his liberty.

28. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff LEXIE ANDRE PEAK suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A THIRD CAUSE OF ACTION FOR MALICIOUS PROSECUTION
UNDER 42 U.S.C. § 1983

29. Plaintiff LEXIE ANDRE PEAK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

30. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, misrepresented and falsified evidence before the District Attorney.

31. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER

15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, did not make a complete and full statement of facts to the District Attorney.

32. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, withheld exculpatory evidence from the District Attorney.

33. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, were directly and actively involved in the initiation of criminal proceedings against Plaintiff LEXIE ANDRE PEAK.

34. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, lacked probable cause to initiate criminal proceedings against Plaintiff LEXIE ANDRE PEAK.

35. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, acted with malice in initiating criminal proceedings against Plaintiff LEXIE ANDRE PEAK.

36. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, were directly and actively involved in the continuation of criminal proceedings against Plaintiff LEXIE ANDRE PEAK.

37. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, lacked probable cause to continue criminal proceedings against Plaintiff LEXIE ANDRE PEAK.

38. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, acted with malice in continuing criminal proceedings Plaintiff LEXIE ANDRE

PEAK.

39. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT misrepresented and falsified evidence throughout all phases of the criminal proceeding.

40. That, notwithstanding the perjurious and fraudulent conduct of Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, the criminal proceedings were terminated in Plaintiff LEXIE ANDRE PEAK's favor.

AS AND FOR A FOURTH CAUSE OF ACTION FOR MUNICIPAL LIABILITY

41. Plaintiff LEXIE ANDRE PEAK repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

42. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

43. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

44. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff LEXIE ANDRE PEAK.

45. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff LEXIE ANDRE PEAK as alleged

herein.

46. That the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff LEXIE ANDRE PEAK as alleged herein.

47. That Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, while acting under the color of state law, was directly and actively involved in violating Plaintiff LEXIE ANDRE PEAK's constitutional rights.

48. That all of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, deprived Plaintiff LEXIE ANDRE PEAK of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. To be free from unwarranted and malicious criminal prosecution;
- E. To be free from malicious abuse of process;
- F. To receive equal protection under the law.

AS AND FOR A FIFTH CAUSE OF ACTION FOR FAILURE TO INTERVENE

49. Plaintiff LEXIE ANDRE PEAK repeats, reiterates and realleges each and every allegation contained in this complaint and further alleges:

50. That each and every individual Defendant had an affirmative duty to intervene on Plaintiff LEXIE ANDRE PEAK's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

51. As a result of the aforementioned conduct of Defendants POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED

POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, and SERGEANT ABDIEL CRUZ, BADGE NUMBER UNKNOWN, Plaintiff LEXIE ANDRE PEAK's constitutional rights were violated and he sustained injuries.

WHEREFORE Plaintiff LEXIE ANDRE PEAK demands judgment against Defendants CITY OF NEW YORK, POLICE OFFICER JONATHAN GOENNER, BADGE NUMBER 15852, and SEVERAL UNIDENTIFIED POLICE OFFICERS ASSIGNED TO THE 23RD PRECINCT, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
November 7, 2014



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
LEXIE ANDRE PEAK
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that the Plaintiff resides outside the County where your affirmant maintains her office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with the Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
November 7, 2014



TRACIE A. SUNDACK